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Rule 11 Plea-Hearing Transcript

United States District Court for the Middle District of North Carolina United States v. Mateo Serrano Criminal Action No. SYN-MDNC-25-CR-0328 Docket Entry 24 November 18, 2025

CLERK TESSA WREN: All rise. The fictional United States District Court for the Middle District of North Carolina is now in session, the Honorable Elara Venn presiding. Calling United States v. Mateo Serrano for a hearing under Rule 11.

THE COURT: Please be seated. Appearances for the record.

BRAM IVES: Bram Ives for the fictional United States.

CELIA ARDEN: Celia Arden for Mateo Serrano, who is present beside me.

THE COURT: Mr. Serrano, today's hearing concerns your proposed guilty plea to Count One. I will ask you questions personally. If you do not understand a question, say so. If you need to speak privately with Ms. Arden, ask for time. Nothing requires you to plead guilty, and you may stop this process before I accept a plea. Do you understand those directions?

THE DEFENDANT: Yes, Your Honor.

Oath and Capacity

THE COURT: Please stand and be sworn.

CLERK: Do you swear that the answers you give will be true in this fictional proceeding?

THE DEFENDANT: I do.

THE COURT: State your full name.

THE DEFENDANT: Mateo Serrano.

THE COURT: Have you received enough education and assistance to read and discuss the plea agreement in English?

THE DEFENDANT: Yes. I read it, and Ms. Arden reviewed it with me.

THE COURT: Are you presently affected by medicine, illness, or any condition that keeps you from understanding this hearing?

THE DEFENDANT: No.

THE COURT: Ms. Arden, do you have any concern about competence?

ARDEN: No, Your Honor. Mr. Serrano has understood our discussions and is able to make an informed decision.

THE COURT: Mr. Serrano, the oath matters. A knowingly false answer can have consequences. You should not guess. Are you prepared to continue?

THE DEFENDANT: Yes.

THE COURT: I find for present purposes that Serrano is competent and capable of entering an informed plea. That finding does not decide whether the plea is voluntary or supported by facts; I will address those subjects separately.

Counsel and Time to Confer

THE COURT: How long have you been represented by Ms. Arden in this matter?

THE DEFENDANT: Since shortly after my first appearance.

THE COURT: Have you discussed the indictment, possible defenses, the evidence disclosed by the government, and the proposed agreement?

THE DEFENDANT: Yes. We discussed each of those things more than once.

THE COURT: Are you satisfied with her advice and representation?

THE DEFENDANT: I am.

THE COURT: Has anyone prevented you from asking counsel a question or reviewing a document?

THE DEFENDANT: No.

THE COURT: Ms. Arden, have you had enough time to investigate the charge and advise Serrano about trial and plea consequences?

ARDEN: Yes. We reviewed discovery, the charge, the factual basis, sentencing estimates, and the waiver language. I believe he understands the options.

THE COURT: Mr. Serrano, if I accept your plea, dissatisfaction with the eventual sentence will not alone permit you to withdraw it. Do you need more time before I explain the charge?

THE DEFENDANT: No, Your Honor. I am ready.

THE COURT: I find that Serrano has had the close assistance of counsel and a sufficient opportunity to confer.

Indictment and Proposed Plea

THE COURT: You received the indictment filed November 5?

THE DEFENDANT: Yes.

THE COURT: Did you read Count One and discuss it with Ms. Arden?

THE DEFENDANT: Yes.

THE COURT: Count One charges a conspiracy to commit wire fraud, under 18 U.S.C. Sections 1349 and 1343, between August 4 and November 2, 2025. It alleges an agreement involving false reimbursement claims for services not performed against the fictional Meridian Community Supply Cooperative. Do you understand the charge?

THE DEFENDANT: Yes.

THE COURT: How do you propose to plead?

THE DEFENDANT: Guilty.

THE COURT: I have not yet accepted that answer. I will first explain what the government would have to prove and what rights you would surrender. You remain free to plead not guilty. Has anyone told you that the court has already decided to accept the plea?

THE DEFENDANT: No.

THE COURT: Has the government agreed to dismiss another count?

IVES: No. Count One is the only count in the synthetic indictment.

THE COURT: Then the agreement must stand on its written promises, not an implied dismissal.

Elements of Count One

THE COURT: Mr. Ives, state the elements without describing operational mechanics.

IVES: The government would have to prove that an agreement existed to commit wire fraud, that Serrano knowingly and voluntarily joined it, and that a member intended the underlying offense. The wire-fraud object required a scheme to obtain money through a material falsehood, fraudulent intent, and use or foreseeable use of an interstate wire communication.

THE COURT: Mr. Serrano, do you understand that association with other people or innocent work would not be enough?

THE DEFENDANT: Yes. The government would have to prove I knowingly joined the unlawful agreement.

THE COURT: Do you understand that a statement is material when it is capable of influencing the decision to part with money?

THE DEFENDANT: Yes.

THE COURT: And that the government would need proof beyond a reasonable doubt if you chose trial?

THE DEFENDANT: Yes.

THE COURT: Ms. Arden, do you agree that this is an adequate description of the charged elements?

ARDEN: Yes, while preserving sentencing disputes not elements of guilt.

THE COURT: That distinction is important. A plea may resolve guilt without resolving every advisory Guidelines question.

Trial Rights

THE COURT: You have the right to persist in your not-guilty plea and receive a speedy and public trial by an impartial jury. At trial, all jurors would have to agree before you could be convicted. Do you understand?

THE DEFENDANT: Yes.

THE COURT: You would be presumed innocent. The government would carry the burden throughout. You could see and hear its witnesses, and Ms. Arden could cross-examine them. You could use the court's process to compel witnesses and evidence for your defense. Do you understand those rights?

THE DEFENDANT: I do.

THE COURT: You could testify if you chose, but no one could force you to testify. If you remained silent, the jury could not treat that silence as evidence of guilt. Do you understand?

THE DEFENDANT: Yes.

THE COURT: A guilty plea waives those trial rights. There will be no jury determination of guilt, and I may enter a conviction on Count One. Has Ms. Arden explained that result?

THE DEFENDANT: Yes.

THE COURT: Do you still wish to continue?

THE DEFENDANT: Yes, Your Honor.

Maximum Consequences and Restitution

THE COURT: Counsel have provided the statutory maximum associated with Count One, and I confirm that the sentence cannot exceed the lawful maximum. No one can promise the actual sentence today. You also face a \$100 special assessment and an order of restitution supported by the record. Do you understand?

THE DEFENDANT: Yes.

THE COURT: The agreement stipulates an aggregate fictional loss and restitution amount of \$186,400. The judgment may establish lawful responsibility and a payment schedule. The court may impose supervised release and conditions authorized by law. Do you understand those possible consequences?

THE DEFENDANT: Yes.

THE COURT: Has anyone guaranteed a term of imprisonment, supervised-release period, placement, or release date?

THE DEFENDANT: No.

THE COURT: Do you understand that a conviction can have additional consequences, and that counsel—not the government or this court—must advise you about any circumstance personal to you?

THE DEFENDANT: Yes. Ms. Arden discussed the consequences with me.

THE COURT: The record will not contain real addresses, accounts, or identifiers. This synthetic amount and organization belong only to the exercise.

Advisory Guidelines

THE COURT: The Sentencing Guidelines are advisory, but I must calculate the applicable range, consider it, and then consider the statutory sentencing factors. I may impose a lawful sentence outside the range. Do you understand?

THE DEFENDANT: Yes.

THE COURT: The parties presently anticipate the 2025 Manual because the offense ended November 2, 2025. They estimate criminal-history category I. With the disputed three-level adjustment under Section 3B1.1(b), they estimate total offense level 20 and 33 to 41 months. Without it, they estimate level 17 and 24 to 30 months. Are those only estimates?

THE DEFENDANT: Yes. The court decides after the report and objections.

THE COURT: Correct. You may not withdraw the plea merely because the final calculation differs. The probation office may identify information counsel did not anticipate. You will have an opportunity to review the report with Arden and make timely objections. Do you understand?

THE DEFENDANT: I do.

THE COURT: No calculation today is a sentencing finding.

Five-Participant Predicate

THE COURT: The factual basis identifies exactly five criminally responsible participants: Mateo Serrano, Alina Pared, Corin Bell, Darius Venn, and Nessa Holt. Are those names and the five-person count part of your stipulation?

THE DEFENDANT: Yes. They are fictional, and I agree there were five participants.

THE COURT: Do you admit that you managed or supervised Ms. Pared?

THE DEFENDANT: No. I admit participating, but I dispute that I managed her.

IVES: The government preserves its position that Serrano supervised Pared as a person.

ARDEN: The defense preserves the position that their exchanges were coordination among equals.

THE COURT: Then the plea does not resolve the role adjustment. The issue is whether Serrano managed or supervised at least one other criminally responsible person. Management of property, assets, or activity alone is not the agreed premise. Serrano may object during the Rule 32 process, and the government may respond. Do all parties agree?

THE DEFENDANT: Yes.

IVES: Yes.

ARDEN: Yes.

Written Agreement and Signatures

THE COURT: I am showing you the twelve-page plea agreement filed as Docket Entry 22. Is that the agreement you reviewed and signed?

THE DEFENDANT: Yes.

THE COURT: Did you read every page before signing?

THE DEFENDANT: Yes, and Ms. Arden explained each section.

THE COURT: Is there any promise, side agreement, or assurance not written there?

THE DEFENDANT: No.

THE COURT: Has anyone threatened you or forced you to plead guilty?

THE DEFENDANT: No.

THE COURT: Mr. Ives, is he writing the complete government agreement?

IVES: It is. The government retains sentencing advocacy described there and promises to honor the express appeal-waiver exception.

THE COURT: Ms. Arden, did you review both the agreement and stipulated factual basis with Serrano before he signed?

ARDEN: Yes. I also explained that the court is not bound by our estimates.

THE COURT: Mr. Serrano, are you entering the agreement voluntarily because you believe it is in your interest and because you are guilty of Count One?

THE DEFENDANT: Yes.

Government Promises

THE COURT: The government agrees to accept the plea to Count One, give appropriate credit for acceptance of responsibility if your conduct remains consistent, disclose required sentencing information, and avoid treating this agreement itself as proof of the disputed role adjustment. Is that your understanding?

THE DEFENDANT: Yes.

THE COURT: It may still argue that you supervised Pared and may respond to your objection. Do you understand that such advocacy is not, by itself, a breach?

THE DEFENDANT: Yes.

THE COURT: The government has not promised a specific sentence or a favorable role ruling. It also agrees not to say that the broad waiver eliminates the written complete-denial-of-allocation exception. Is that accurate, Mr. Ives?

IVES: Yes, Your Honor.

THE COURT: Mr. Serrano, if you materially breach the agreement, remedies may follow. But a good-faith Guidelines objection or a claim genuinely within the express exception is not defined as a breach. Do you understand?

THE DEFENDANT: I do.

THE COURT: Has the government made any other promise to induce the plea?

THE DEFENDANT: No.

Appeal Waiver: Broad Rule

THE COURT: I will now address the appeal waiver personally, as Rule 11 requires. Listen carefully. Did you read the separate paragraph that gives up review of the conviction and sentence, expressly including the statutory route in Section 3742, while retaining the written exception we will discuss next?

THE DEFENDANT: Yes.

THE COURT: The first part is broad. It gives up an appeal from the conviction and an appeal from the sentence on ordinary grounds. It specifically includes the statutory route commonly used for Guidelines claims. Do you understand?

THE DEFENDANT: Yes.

THE COURT: So even if you object to the three-level role adjustment here, and even if I later overrule that objection, the agreement says an ordinary appellate challenge to that Guidelines ruling is waived. Do you understand that distinction?

THE DEFENDANT: Yes. I can object here, but the ordinary enhancement appeal is waived.

Appeal Waiver: Express Exception

THE COURT: Now explain the exception in your own words.

THE DEFENDANT: If the sentencing court completely fails to give me a personal chance to speak before sentence, the waiver does not bar that claim.

THE COURT: Correct. The exception concerns complete denial of your personal opportunity to allocute under Rule 32(i)(4)(A)(ii). It does not reserve every complaint about how long you speak, what the court says in response, or what sentence follows. Do you understand?

THE DEFENDANT: Yes.

THE COURT: It also does not convert the role-enhancement issue into an allocution claim. The role issue remains within the broad waiver even though the allocution exception is outside it. Do you understand the target-specific separation?

THE DEFENDANT: Yes. The enhancement challenge is waived; complete denial of my chance to speak is expressly preserved.

THE COURT: Has anyone told you the exception is meaningless or that the government may ignore it?

THE DEFENDANT: No.

THE COURT: Do you knowingly agree to both the waiver and the exception as written?

THE DEFENDANT: I do.

Waiver Confirmation by Counsel

THE COURT: Ms. Arden, have you advised Serrano about the difference between preserving an objection for sentencing and preserving a claim for appeal?

ARDEN: Yes. He understands that a timely role objection may be decided here but remains covered by the broad appellate waiver. He also understands that the complete-denial-of-allocation claim is expressly excluded from that waiver.

THE COURT: Mr. Ives, does the government adopt that reading?

IVES: Yes. The agreement is claim-specific. The government may enforce the waiver against an ordinary Guidelines appeal but will not rely on it against a claim fitting the exact allocation carve-out.

THE COURT: Mr. Serrano, appellate law can change over time, and no one can predict every issue. Are you nevertheless choosing to give up the rights described in the broad clause?

THE DEFENDANT: Yes.

THE COURT: Are you relying on an unwritten promise that some other claim will be heard?

THE DEFENDANT: No.

THE COURT: I find that the waiver and its exception have been separately explained, that Serrano has accurately described their operation, and that his assent is knowing and intelligent under the present record.

Presentence Report and Opportunity to Object

THE COURT: If I accept the plea, the probation office will prepare a presentence report. You and Arden will receive authorized access and may identify factual or legal objections. The report itself and responses or objections are governed by confidentiality rules. Do you understand?

THE DEFENDANT: Yes.

THE COURT: A public docket notice may identify categories and dates, but it is not a public redacted report. No member of the public receives the confidential report merely because a category index exists. Do you understand that boundary?

THE DEFENDANT: Yes.

THE COURT: The report may discuss offense conduct, participants, the role recommendation, the estimated range, criminal history, restitution, and personal mitigation. You should review it carefully. If you disagree, tell Arden promptly so she can use the Rule 32 process. Do you understand?

THE DEFENDANT: I do.

THE COURT: The probation officer's recommendation will not bind me. Nor does confidentiality prevent you from presenting lawful sentencing arguments through counsel. It controls access and dissemination of the report, not your ability to contest its conclusions.

Stipulated Factual Basis

THE COURT: I am showing you the eight-page stipulated factual basis filed as Docket Entry 23. Did you review and sign it?

THE DEFENDANT: Yes.

THE COURT: Do you admit that from August 4 through November 2, 2025, you knowingly joined an agreement to obtain money through materially false reimbursement claims for services not performed?

THE DEFENDANT: Yes.

THE COURT: Did you understand the fraudulent object and intend to help it succeed?

THE DEFENDANT: Yes.

THE COURT: Was interstate wire use by a participant reasonably foreseeable to you?

THE DEFENDANT: Yes.

THE COURT: Do you agree that the aggregate fictional loss was \$186,400?

THE DEFENDANT: Yes.

THE COURT: Your admissions establish knowing participation, but they do not concede that you supervised Pared. Is that accurate?

THE DEFENDANT: Yes.

THE COURT: Mr. Ives, could the government present admissible fictional evidence consistent with that summary?

IVES: It could.

THE COURT: Ms. Arden, any objection to its sufficiency for Count One?

ARDEN: No.

Defendant's Description of Conduct

THE COURT: Mr. Serrano, I want to hear your own brief account. Do not describe operational details. What did you do that makes you guilty?

THE DEFENDANT: I knowingly took part in an agreement with four other people to seek reimbursement for services we knew had not been performed. I understood the cooperative would rely on the false claims. I communicated with others to help the agreement, and I knew interstate communications would be used.

THE COURT: Were you acting by mistake or merely performing an innocent assignment?

THE DEFENDANT: No. I knew the purpose was fraudulent.

THE COURT: Did the charged agreement continue through November 2?

THE DEFENDANT: Yes.

THE COURT: Do you agree there were exactly five criminally responsible participants, including you?

THE DEFENDANT: Yes, but I do not agree I supervised another person.

THE COURT: That reservation is noted. Your description establishes the guilty-plea elements but does not decide the sentencing role dispute. I find an independent factual basis for Count One, subject to the final voluntariness questions that follow.

Voluntariness

THE COURT: Apart from the written agreement, has anyone offered you money, favorable treatment, or another benefit to cause this plea?

THE DEFENDANT: No.

THE COURT: Has anyone threatened you, a family member, or another person?

THE DEFENDANT: No.

THE COURT: Are you pleading guilty because you are in fact guilty of Count One?

THE DEFENDANT: Yes.

THE COURT: Have you consumed anything today that affects judgment or memory?

THE DEFENDANT: No.

THE COURT: Do you understand that I have made no sentencing commitment and that a sentence within the lawful range cannot be rejected simply because it disappoints you?

THE DEFENDANT: Yes.

THE COURT: Do you understand that the advisory role issue remains open, while the agreement's broad waiver covers an ordinary appeal from that calculation?

THE DEFENDANT: Yes.

THE COURT: Do you still wish to plead guilty?

THE DEFENDANT: I do.

THE COURT: I find that the plea is voluntary and not the product of force, threat, or an undisclosed promise.

Formal Plea

THE COURT: Mr. Serrano, please stand. How do you plead to Count One of the indictment, guilty or not guilty?

THE DEFENDANT: Guilty.

THE COURT: I find that Serrano is competent; understands the charge, consequences, trial rights, advisory sentencing process, restitution, and the written agreement; knowingly waives the identified rights; and enters the plea voluntarily. I further find a factual basis for the plea. The guilty plea to Count One is accepted, subject to the written order that will be entered today.

ARDEN: Thank you, Your Honor.

IVES: Thank you.

THE COURT: The finding accepts guilt, not a disputed aggravating-role recommendation. The probation office will evaluate that issue, and both parties may use the prescribed objection process. The appellate waiver and complete-denial-of-allocation exception remain exactly as stated and explained.

The clerk shall file the executed plea agreement and factual basis as separate public entries. No presentence material is before the court today. Confidentiality of a later report will be governed by the rules then in force.

Presentence Referral

THE COURT: The matter is referred to fictional Probation Officer Niko Faye for preparation of a presentence report. The probation office shall arrange interviews and disclosures through counsel and shall avoid placing private report content on the public docket. The parties must comply with the objection schedule established under Rule 32 and the applicable local rules.

Mr. Serrano, cooperate truthfully with the presentence investigation after consulting Arden. Review the draft report carefully. An objection should identify the disputed statement or recommendation and the requested correction. The role issue remains open, including whether you managed or supervised at least one of the other four participants.

THE DEFENDANT: I understand.

THE COURT: Sentencing will be fixed by later notice after the probation schedule is calculated. No date announced informally today controls. Existing custody and appearance conditions remain in effect unless modified by a written order.

ARDEN: May we receive notice through the fictional exercise office?

THE COURT: Yes. The clerk shall serve both counsel. This referral does not authorize public distribution of the report or any response to it.

Closing Directions

THE COURT: Mr. Serrano, one final point. Rule 32 ordinarily requires the sentencing court to address you personally before sentence and allow you to speak or present mitigation. Your agreement expressly preserves a claim based on complete denial of that opportunity. Today's explanation does not predict any error; it confirms what the accepted agreement means. Do you understand?

THE DEFENDANT: Yes.

THE COURT: Counsel must remain attentive to every sentencing obligation. The presence of counsel and counsel's advocacy do not eliminate the distinct personal opportunity described in Rule 32. At the same time, no one should infer from this reminder that a future proceeding will be deficient.

The clerk will enter a separate order accepting the plea. The transcript shall remain public, subject to ordinary correction of transcription errors, because it contains no presentence report or private identifier. Any later public docket surrogate concerning confidential probation material must remain a category index, not a redacted report.

Anything further from the government?

IVES: No, Your Honor.

ARDEN: Nothing from the defense.

THE COURT: The hearing is adjourned.

CLERK: All rise.